
CLIENT SERVICE AGREEMENT

R-PRO BUSINESS CONSULT SERVICES LIMITED

(This Document Contains 22 Pages)

COMPANY LOGOR-Pro Business Consult Services
Limited

THIS CLIENT SERVICE AGREEMENT ("Agreement") is made this ____ day of _____ 2026.

BETWEEN

R-PRO BUSINESS CONSULT SERVICES LIMITED, a company duly incorporated under the Companies and Allied Matters Act, 2020 of the Federal Republic of Nigeria with its registered office at House 13, Road 1, Lekki Gardens Estate, Sangotedo, Lagos State, Nigeria (hereinafter referred to as "**R-Pro Business Consult**", "**Consultant**", or "**Service Provider**");

AND

[Full Legal Name] of [Residential Address]

Phone number:

Email: _____ (hereinafter referred to as the "**Client**"
or "**Applicant**") of the Other Part.

The Parties shall collectively be referred to as the "**Parties**" and individually as a "**Party**".

WHEREAS:

- A. R-Pro Business Consult Services Limited ("R-Pro Business Consult") is a business consulting and advisory firm engaged in the provision of business development services, business registration services, regulatory compliance support, corporate advisory services, project management support, business strategy development, market research, capacity building, training, financial advisory support, investment readiness services, proposal writing, grant advisory services, procurement support, and such other business consultancy services as may be offered from time to time;
- B. The Client desires to engage R-Pro Business Consult to provide one or more of such consulting, advisory, business support, or project-related services;
- C. R-Pro represents that it possesses the requisite expertise, experience, professional knowledge, systems, and resources necessary to provide the Services and has agreed to do so subject to the terms and conditions set out in this Agreement;
- D. The Parties acknowledge that R-Pro provides advisory, consultancy, facilitation, and support services only and that business outcomes, grant approvals, funding decisions, regulatory approvals, contract awards, procurement awards, investment decisions, or any other third-party determinations cannot be guaranteed by R-Pro;
- E. The Parties desire to define their respective rights, obligations, responsibilities, and expectations regarding the Services to be provided and the fees payable by the Client.

NOW THEREFORE, in consideration of the mutual covenants, representations, and promises contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. DEFINITIONS

For the purposes of this Agreement, unless the context otherwise requires, the following terms shall have the meanings assigned to them below:

"Services" means business consulting, regulatory compliance advisory, company registration support, business development services, grant advisory services, procurement support, project management support, training and capacity building, strategy development, proposal writing, market research, corporate advisory services, and any related consultancy or support services provided by R-Pro Business Consult Services to the Client.

"Authority" means any government ministry, department, agency, regulatory authority, licensing authority, donor organization, funding body, financial institution, development agency, procurement entity, professional body, certification authority, corporate organization, educational institution, investor, or any other organization or entity involved in evaluating, processing, approving, funding, licensing, regulating, or administering a Project, Application, or business transaction relating to the Client.

"Application" means any registration, filing, submission, proposal, expression of interest, grant application, funding request, procurement bid, tender submission, licence application, permit application, regulatory filing, compliance submission, certification application, company registration, project proposal, business proposal, or any other process undertaken, facilitated, supported, or coordinated by R-Pro Business Consult Services for or on behalf of the Client in connection with the Services.

"Client" means the individual, enterprise, business entity, company, partnership, non-governmental organization, institution, sponsor, or other person engaging R-Pro Business Consult Services for the provision of Services under this Agreement and includes the Client's authorized representatives.

"Project Documents" means all forms, certificates, licences, registrations, corporate records, regulatory filings, business plans, financial statements, tax records, procurement documents, proposals, reports, corporate resolutions, supporting documents, correspondence, and any other documents or information submitted by the Client or required for any Project or Application.

"Fees" means all professional fees, consultation fees, advisory fees, retainer fees, service charges, administrative costs, processing fees, project fees, training fees, and any other amounts payable by the Client to R-Pro Business Consult Services under this Agreement, excluding payments payable directly to a Third Party unless otherwise stated.

"Permit" means any licence, permit, approval, authorization, registration, certification, accreditation, clearance, or consent issued by a competent government authority, regulator, professional body, funding institution, or other authorized entity.

"Grant" means any financial assistance, funding, sponsorship, donation, investment support, development funding, technical assistance funding, subsidy, grant award, or similar financial benefit provided by a donor organization, development partner, funding institution, government agency, or other Third Party.

"Business Day" means any day other than a Saturday, Sunday, or public holiday in Nigeria on which commercial banks are open for business.

"Confidential Information" means all non-public, proprietary, personal, financial, commercial, operational, technical, strategic, regulatory, business, or other information disclosed by either

Party in connection with this Agreement, whether disclosed orally, electronically, or in writing, including personal data and Project Documents, but excluding information that is publicly available through no breach of this Agreement.

"Force Majeure Event" means any event beyond the reasonable control of a Party, including acts of God, pandemics, epidemics, government actions, regulatory changes, policy changes, civil unrest, war, strikes, natural disasters, cyberattacks, system failures, political instability, or other circumstances that prevent or delay the performance of obligations under this Agreement.

"Successful Project" means any Project, Application, proposal, registration, filing, grant request, procurement submission, regulatory application, certification application, or business transaction that results in an approval, registration, certification, funding award, grant award, licence issuance, permit issuance, contract award, procurement award, regulatory clearance, or any other positive outcome sought by the Client and formally communicated by the relevant Institution or Third Party. For the avoidance of doubt, a Successful Project does not imply that R-Pro Business Consult Services guaranteed or caused such outcome.

2. SCOPE OF SERVICES

Subject to the package, engagement, project, or service plan selected by the Client and payment of the applicable Fees, **R-Pro Business Consult Services** may provide the following services:

2.1 Business Registration and Corporate Compliance Services

R-Pro Business Consult Services may provide business registration, incorporation, and corporate compliance support services, including company incorporation, business name registration, NGO registration, post-incorporation filings, annual returns filing, regulatory registrations, licensing assistance, corporate secretarial support, and general business compliance advisory services.

2.2 Business Advisory and Consulting Services

R-Pro Business Consult Services may provide business advisory and consulting services, including business planning, business restructuring, operational improvement, strategic planning, feasibility studies, market entry strategies, business process development, growth planning, and general business management support.

2.3 Regulatory Compliance Services

R-Pro Business Consult Services may provide regulatory compliance support, including compliance assessments, policy development, regulatory filings, compliance advisory, risk management support, governance framework development, and assistance with meeting applicable statutory and regulatory obligations.

2.4 Grant and Funding Advisory Services

R-Pro Business Consult Services may identify suitable grant, funding, investment, sponsorship, donor, and financing opportunities and provide guidance on eligibility requirements, proposal development, application preparation, supporting documentation, submission processes, and donor compliance requirements.

2.5 Procurement and Tender Support Services

R-Pro Business Consult Services may provide procurement and tender support services, including tender opportunity identification, bid documentation preparation, proposal writing, eligibility assessment, procurement compliance advisory, bid submission support, and post-submission advisory services.

2.6 Project Management and Implementation Support Services

R-Pro Business Consult Services may provide project management and implementation support services, including project planning, project monitoring and evaluation, stakeholder engagement, reporting support, implementation advisory, project documentation, and project coordination services.

2.7 Training and Capacity Development Services

R-Pro Business Consult Services may provide professional training, workshops, seminars, coaching, mentoring, capacity building programmes, leadership development, compliance training, business development training, and other learning and development services designed to improve organizational and individual performance.

2.8 Corporate Advisory Services

R-Pro Business Consult Services may provide corporate advisory services, including governance advisory, organizational development, policy and procedure development, board advisory support, institutional strengthening, business diagnostics, restructuring support, and other strategic advisory services.

2.9 Research and Proposal Development Services

R-Pro Business Consult Services may provide market research, business intelligence, proposal development, concept note preparation, business case development, investment memoranda preparation, technical writing, and related research and documentation services.

2.10 Ancillary Services

R-Pro Business Consult Services may provide such other consulting, advisory, facilitation, administrative, project support, business development, training, compliance, or professional services as may be agreed between the Parties in writing from time to time.

2.11 No Guarantee of Outcome

The Client acknowledges that R-Pro Business Consult Services provides professional advisory, consulting, facilitation, and support services only and does not guarantee:

- a. Company registrations or regulatory approvals;
- b. Grant, donor, sponsorship, or funding approvals;
- c. Investment commitments or financing approvals;
- d. Contract, procurement, or tender awards;
- e. Business profitability or commercial success;
- f. Regulatory licences or permits;
- g. Government approvals or certifications;
- h. Project funding or implementation outcomes; or
- i. Any other result that is subject to the decision, approval, assessment, or discretion of any Institution or Third Party.

All such decisions remain solely within the discretion of the relevant Institution, regulator, government authority, donor organization, investor, procurement entity, financial institution, or

other Third Party, and R-Pro Business Consult Services shall not be liable for any unsuccessful outcome arising therefrom.

3. SERVICE STANDARDS AND CLIENT COMMUNICATION

3.1 Professional Standard of Service

R-Pro Business Consult shall perform the Services with reasonable skill, care, diligence, professionalism, and competence consistent with generally accepted business consulting, advisory, compliance, procurement, training, research, and project management practices.

The Consultant shall use commercially reasonable efforts to provide accurate, timely, and professional services and shall allocate appropriately qualified personnel to assignments undertaken on behalf of the Client.

The Client acknowledges that consulting services involve recommendations, analysis, and professional opinions based on available information and that implementation decisions remain the responsibility of the Client.

3.2 Client Communication

R-Pro Business Consult shall maintain regular communication with the Client and provide updates regarding the progress of Projects, submissions, filings, applications, advisory assignments, training engagements, and related Services.

The Consultant shall:

- Keep the Client reasonably informed of material developments;
- Notify the Client of regulatory, compliance, or procedural requirements relevant to the engagement;
- Request additional information where necessary;
- Respond to reasonable enquiries within commercially reasonable timeframes;

Provide guidance regarding project implementation and compliance requirements.

4. NO GUARANTEE OF OUTCOMES

4.1 Advisory and Facilitation Role

The Client expressly acknowledges and agrees that R-Pro Business Consult Services acts solely as a consultant, adviser, facilitator, project coordinator, trainer, researcher, compliance adviser, and professional service provider. The Consultant's role is limited to providing professional guidance, preparing documents, coordinating processes, offering strategic recommendations, and facilitating engagements with relevant Institutions and Third Parties.

The Client further acknowledges that R-Pro Business Consult Services does not exercise control over government agencies, regulators, funding institutions, investors, procurement entities, certification bodies, financial institutions, development partners, or any other Third Party whose

approval, decision, assessment, funding, certification, registration, or authorization may be required in connection with a Project.

4.2 No Warranties or Guarantees

While R-Pro Business Consult Services shall use reasonable skill, care, diligence, professional expertise, and commercially reasonable efforts in providing the Services, the Client understands and agrees that the Consultant does not warrant, represent, undertake, or guarantee the success of any Project, Application, registration, proposal, advisory engagement, compliance exercise, procurement process, or business initiative.

Accordingly, R-Pro Business Consult Services does not guarantee:

- a. Company registration approvals or business registration outcomes;
- b. Regulatory approvals, licences, certifications, permits, or renewals;
- c. Approval of grant applications, donor funding requests, sponsorship requests, or development funding proposals;
- d. Funding approvals, loans, credit facilities, investment capital, or financial assistance;
- e. Investment commitments from investors, venture capital firms, angel investors, financial institutions, or development finance institutions;
- f. Access to government incentives, intervention funds, tax incentives, subsidies, grants, waivers, or support schemes;
- g. Procurement awards, tender success, contract awards, prequalification approvals, or bid selection;
- h. Certification approvals, accreditation approvals, registrations, or professional recognitions;
- i. Successful project implementation or project completion outcomes;
- j. Business profitability, commercial success, revenue generation, financial performance, market growth, customer acquisition, or return on investment;
- k. The achievement of business expansion goals, strategic objectives, key performance indicators, growth targets, or operational improvements; or
- l. Any other result, approval, authorization, certification, decision, funding, benefit, opportunity, or outcome dependent upon the discretion, assessment, approval, or decision-making authority of a Third Party.

4.3 Third-Party Decision Making

The Client acknowledges that approvals, registrations, licences, permits, certifications, grants, funding awards, procurement awards, investment decisions, regulatory clearances, and similar outcomes are determined exclusively by the relevant Institution or Third Party based on its own policies, procedures, eligibility requirements, evaluation criteria, priorities, risk assessments, discretion, and decision-making processes.

Such decisions are independent of R-Pro Business Consult Services and are beyond its control.

4.4 No Liability for Unsuccessful Outcomes

R-Pro Business Consult Services shall not be liable or responsible where any Project, Application, proposal, registration, certification request, grant request, compliance filing, tender submission, procurement process, funding application, investment proposal, or regulatory submission is rejected, delayed, denied, withdrawn, suspended, cancelled, not shortlisted, not funded, or otherwise unsuccessful, provided that the Consultant has performed the Services with reasonable professional care and diligence.

4.5 Business Risk Acknowledgement

The Client acknowledges that business operations, regulatory engagements, grant applications, funding requests, procurement exercises, strategic initiatives, and commercial transactions inherently involve risks and uncertainties.

The Client further acknowledges that recommendations, reports, opinions, analyses, forecasts, projections, business plans, feasibility studies, market assessments, financial models, and strategic advice provided by the Consultant are based on information available at the time and constitute professional opinions only. Such recommendations do not constitute guarantees of future performance or outcomes.

4.6 Changes Beyond the Consultant's Control

R-Pro Business Consult Services shall not be responsible for any adverse outcome arising from:

- a. Changes in laws, regulations, policies, or government directives;
- b. Changes in eligibility requirements or selection criteria imposed by third parties;
- c. Changes in economic, commercial, political, market, or industry conditions;
- d. Changes in donor priorities, funding availability, procurement requirements, or investment criteria;
- e. Delays by regulators, government agencies, financial institutions, or procurement entities;
- f. Technical failures, system outages, cybersecurity incidents, or disruptions affecting third-party systems; or
- g. Any other circumstance beyond the reasonable control of R-Pro Business Consult Services.

4.7 Client Acknowledgement

By engaging R-Pro Business Consult Services, the Client acknowledges and agrees that the Fees payable under this Agreement are consideration solely for the professional services, expertise, advisory support, consulting services, facilitation, coordination, training, research, documentation, and assistance provided by the Consultant and not for any guaranteed approval, registration, permit, certification, grant award, funding, investment, contract award, procurement success, commercial result, or specific outcome.

The Client further acknowledges that the value of the Services lies in the professional expertise and support provided by the Consultant irrespective of whether a particular Project ultimately achieves the desired outcome.

5. CLIENT OBLIGATIONS

5.1 Client Responsibilities

The Client shall cooperate fully with R-Pro Business Consult and shall provide all information, documents, approvals, instructions, and assistance reasonably required for the performance of the Services.

In particular, the Client shall:

- a. **Provide complete, accurate, and timely information** relevant to the Project or engagement;
- b. **Supply authentic, lawful, and valid documents** required for the provision of the Services;
- c. **Participate actively in the engagement**, including providing feedback, instructions, and decisions when required;
- d. **Attend meetings, consultations, workshops, and training sessions** reasonably required for the successful delivery of the Services;
- e. **Review and approve submissions, reports, proposals, applications, and deliverables promptly** to avoid delays;
- f. **Comply with all applicable laws, regulations, policies, and industry requirements** relevant to the Project or business activity;
- g. **Obtain all necessary internal approvals, authorisations, resolutions, and consents** required for the implementation of the Services; and
- h. **Pay all Fees, charges, and expenses when due** in accordance with this Agreement.

5.2 Accuracy of Information

The Client represents and warrants that all information, documents, records, and data supplied to the Consultant are accurate, complete, authentic, current, and not misleading in any material respect.

5.3 Reliance on Client Information

The Consultant shall be entitled to rely upon all information, documents, and instructions supplied by the Client without any obligation to independently verify their accuracy, completeness, authenticity, or legality.

5.4 Client Responsibility

The Client shall bear sole responsibility for any loss, delay, rejection, regulatory action, penalty, disqualification, or adverse outcome arising directly or indirectly from:

- a. False, inaccurate, incomplete, or misleading information;
- b. Forged, altered, invalid, or unlawful documentation;
- c. Failure to provide required information or approvals within the required time; or
- d. Failure to comply with applicable legal, regulatory, or procedural requirements.

5.5 Consequences of Non-Compliance

The Consultant shall not be liable for any delay, rejection, refusal, failed application, unsuccessful bid, loss of funding opportunity, regulatory sanction, or other adverse consequence resulting from the Client's failure to comply with its obligations under this Agreement.

6. FEES AND PAYMENT

6.1 Service Fees

The fees payable for the Services shall be communicated to the Client and may be set out in an Engagement Letter, Retainer Agreement, Quotation, Invoice, Project Proposal, Training Proposal, Statement of Work, Project Schedule, or any other written communication issued by R-Pro Business Consult Services and accepted by the Client.

The applicable Fees shall depend on the nature, scope, complexity, duration, and resource requirements of the Services.

6.2 Payment Terms

Unless otherwise agreed in writing:

- a. Fees shall be payable in advance before commencement of the relevant Services;
- b. The Consultant shall not be obliged to commence or continue any Services until payment has been received;
- c. Invoices shall become due immediately upon issuance unless otherwise stated;
- d. VAT and all applicable taxes, bank charges, transfer fees, and transaction costs shall be borne by the Client;
- e. The Consultant may suspend Services or withhold deliverables where any payment remains outstanding.

6.3 Retainer Arrangements

Where Services are provided under a retainer arrangement:

- a. Retainer Fees shall be payable in advance;
- b. The retainer shall cover only the services specifically agreed between the Parties;
- c. Unused retainer hours, consultations, or service allocations shall not roll over to subsequent periods unless expressly agreed in writing; and
- d. Any work outside the agreed retainer scope shall attract additional fees.

6.4 Additional Work

Any work, assignment, revision, consultation, report, training, filing, proposal, or deliverable that falls outside the agreed scope of Services shall attract additional fees. The Consultant may issue a revised quotation, variation order, or supplementary invoice before undertaking such additional work.

6.5 Third-Party Costs

The Client shall be solely responsible for all third-party fees, statutory charges, filing fees, registration fees, licensing fees, certification fees, travel expenses, and other costs payable to any Institution or Third Party in connection with the Services.

6.6 No Outcome-Based Fees

The Client acknowledges that Fees are payable for the professional expertise, advisory services, consulting support, coordination, research, training, and assistance provided by the Consultant and are not contingent upon any approval, grant, funding, investment, contract award, procurement success, regulatory approval, or other specific outcome.

7. THIRD-PARTY SERVICES

7.1 Engagement with Third Parties

The Client acknowledges that the successful delivery of certain Services may require R-Pro Business Consult to communicate, liaise, coordinate, file applications, submit documents, or otherwise engage with various Institutions and Third Parties on the Client's behalf.

Such Third Parties may include, but are not limited to:

- a. The Corporate Affairs Commission (CAC);
- b. The Federal Inland Revenue Service (FIRS);
- c. State Internal Revenue Services and other tax authorities;
- d. The National Agency for Food and Drug Administration and Control (NAFDAC);
- e. The Standards Organisation of Nigeria (SON);
- f. The Securities and Exchange Commission (SEC);
- g. The Special Control Unit Against Money Laundering (SCUML);
- h. Procurement entities and contracting authorities;
- i. Donor organisations, grant-making institutions, and development partners;
- j. Investors, venture capital firms, private equity firms, and financial sponsors;
- k. Development finance institutions and multilateral agencies;
- l. Banks, financial institutions, and lending organisations;
- m. Government ministries, departments, agencies, and regulatory bodies;
- n. Professional bodies, certification authorities, and accreditation organisations; and
- o. Any other Institution or Third Party relevant to the Services being provided.

7.2 Independence of Third Parties

The Client acknowledges that all Third Parties operate independently of R-Pro Business Consult Services and retain sole authority over their decisions, policies, procedures, approval processes, requirements, fees, timelines, and eligibility criteria.

Nothing in this Agreement shall be construed as giving R-Pro Business Consult Services the power to influence, control, direct, or guarantee the actions or decisions of any Third Party.

7.3 No Responsibility for Third-Party Actions

R-Pro Business Consult Services shall not be responsible or liable for any act, omission, decision, delay, failure, negligence, default, or action taken by any Third Party in connection with the Client's Project, Application, registration, approval process, funding request, procurement submission, certification, or regulatory engagement.

7.4 Exclusion of Liability

Without prejudice to the generality of the foregoing, the Consultant shall not be liable for:

- a. Delays in processing applications, registrations, approvals, licences, permits, grants, certifications, or other submissions;
- b. Refusals, denials, rejections, cancellations, suspensions, withdrawals, or revocations of any approval, permit, licence, grant, certification, registration, funding request, procurement submission, or contract award;
- c. Additional requirements, conditions, documentation requests, inspections, investigations, or compliance obligations imposed by any Third Party;
- d. Changes in laws, regulations, policies, procedures, eligibility criteria, fees, funding priorities, procurement requirements, or regulatory requirements;
- e. Changes in processing timelines or service delivery standards imposed by any Institution or Third Party;
- f. System failures, website outages, technical disruptions, cyber incidents, platform downtime, or technological failures affecting Third-Party systems;
- g. Errors, inaccuracies, omissions, delays, or misinformation originating from any Third Party; or
- h. Any decision, determination, assessment, recommendation, or approval process undertaken by a Third Party.

7.5 Third-Party Costs and Obligations

The Client shall remain solely responsible for complying with all requirements imposed by any Third Party and for the payment of any applicable fees, levies, deposits, statutory charges, filing fees, licensing fees, certification fees, penalties, or other expenses payable to such Third Party.

Any contractual, regulatory, financial, or legal relationship between the Client and a Third Party shall remain separate from this Agreement.

7.6 Client Acknowledgement

The Client acknowledges and accepts that the Services provided by R-Pro Business Consult are advisory, consultative, administrative, and facilitative in nature and that the final outcome of any registration, approval, grant application, funding request, procurement process, certification exercise, compliance engagement, or business transaction remains entirely dependent upon the discretion and decision-making authority of the relevant Institution or Third Party.

Accordingly, no claim shall lie against R-Pro Business Consult Services solely because a Third-Party delays, rejects, refuses, suspends, withdraws, modifies, or otherwise adversely determines any matter relating to the Client's Project or Application.

8. WITHDRAWAL AND REFUNDS

8.1 The Client may withdraw from or terminate the Engagement at any time by providing written notice to the Consultant.

8.2 Where the Client withdraws before the Consultant has commenced any substantial work under this Agreement, the Consultant may, at its sole discretion, refund any fees paid by the Client, subject to the deduction of all administrative, processing, onboarding, and other costs already incurred in connection with the Engagement.

8.3 Once the Consultant has commenced the provision of any Services, whether by way of consultations, research, document preparation, advisory meetings, application reviews, stakeholder engagements, submission processes, or any other work relating to the Engagement, the following shall apply:

- a. All consultancy fees paid or payable shall be deemed earned and shall be non-refundable;
- b. All advisory and professional service fees shall be non-refundable;
- c. All administrative, processing, filing, and service-related costs incurred by the Consultant shall remain payable by the Client;
- d. Any third-party expenses, charges, levies, government fees, licensing fees, travel costs, professional fees, courier charges, subscriptions, or other disbursements incurred on behalf of the Client shall be borne solely by the Client and shall not be refundable by the Consultant;
- e. The Client shall remain liable for payment of all work performed, commitments undertaken, and expenses incurred by the Consultant up to the effective date of withdrawal.

8.4 The Client acknowledges and agrees that the Consultant provides professional advisory and support services only and does not guarantee the achievement of any particular outcome, result, approval, funding, grant, licence, certification, registration, contract award, business opportunity, or commercial objective.

8.5 Accordingly, no refund, compensation, reduction of fees, or claim for reimbursement shall arise merely because:

- a. A grant application is unsuccessful;
- b. A loan, investment, funding, or financing request is denied, delayed, or approved on terms not acceptable to the Client;
- c. A licence, permit, registration, accreditation, certification, or regulatory approval is refused, delayed, suspended, or rejected;
- d. A tender, bid, procurement process, or contract application is unsuccessful;
- e. A business objective, commercial target, investment goal, or strategic outcome is not achieved;
- f. The Client decides not to proceed with the Engagement after work has commenced;
- g. A third party, regulatory authority, financier, investor, government agency, procurement body, or other decision-making entity declines, delays, or refuses any application, request, or submission made on behalf of the Client.

8.6 Except as expressly provided in this Agreement, all fees paid to the Consultant are final and non-refundable.

8.7 Any approved refund shall be processed within a reasonable period after deduction of all applicable costs, expenses, taxes, charges, and amounts due to the Consultant under this Agreement.

9. LIMITATION OF LIABILITY

9.1 The Client acknowledges that the Consultant provides professional advisory, consulting, facilitation, compliance, business support, and related services based on information supplied by the Client and on the Consultant's professional judgment. The Consultant does not guarantee the achievement of any specific commercial, financial, regulatory, operational, or business outcome.

9.2 To the fullest extent permitted by applicable law, R-Pro Business Consult Services, its directors, partners, employees, agents, affiliates, subcontractors, and representatives shall not be liable for any loss, damage, cost, claim, expense, or liability arising from or connected with the Engagement, including but not limited to:

- a. Loss of business opportunities;
- b. Loss of anticipated revenue, profits, savings, or income;
- c. Loss of contracts, customers, clients, investors, or strategic partners;
- d. Unsuccessful tenders, bids, proposals, procurements, or contract awards;
- e. Failure to secure grants, loans, investments, donor funding, venture capital, or any other form of financing;
- f. Rejection, refusal, suspension, withdrawal, delay, or cancellation of any licence, permit, registration, accreditation, certification, approval, or authorization by any regulatory or governmental authority;
- g. Failure of any application, submission, proposal, registration, certification, or compliance process;
- h. Operational losses, production losses, project delays, business interruptions, or disruption of commercial activities;
- i. Loss of goodwill, reputation, market position, or brand value;
- j. Loss or corruption of data, records, documents, or electronic information not caused by the Consultant's wilful misconduct;
- k. Decisions, actions, omissions, errors, or delays by government agencies, regulators, investors, lenders, procurement bodies, third-party service providers, or other external stakeholders;
- l. Any indirect, incidental, consequential, exemplary, punitive, special, or speculative damages, whether foreseeable or unforeseeable.

9.3 The Consultant shall not be liable for any loss, damage, or delay arising from:

- a. Inaccurate, incomplete, misleading, or late information provided by the Client;

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- b. The Client's failure to implement, follow, or act upon advice or recommendations provided by the Consultant;
 - c. Changes in laws, regulations, government policies, market conditions, funding criteria, procurement requirements, or regulatory standards occurring after the commencement of the Engagement;
 - d. Acts or omissions of third parties over whom the Consultant has no control;
 - e. Circumstances constituting force majeure under this Agreement.

9.4 The Client acknowledges that any forecasts, projections, recommendations, business plans, financial models, compliance guidance, funding strategies, or regulatory support services provided by the Consultant are based on assumptions and available information and do not constitute guarantees of success or future performance.

9.5 No action, claim, proceeding, or demand arising out of or relating to this Agreement may be brought against the Consultant more than twelve (12) months after the event giving rise to the claim first occurred or ought reasonably to have been discovered by the Client.

9.6 To the fullest extent permitted by law, the aggregate liability of the Consultant arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statutory duty, misrepresentation, restitution, or otherwise, shall not exceed the total fees actually paid by the Client to the Consultant for the specific Service that directly gave rise to the claim.

9.7 The limitation of liability set out in this Agreement shall survive the completion, expiration, cancellation, or termination of the Engagement.

Notwithstanding anything to the contrary in this Agreement, the Consultant shall not be liable for any loss arising from funding decisions, grant awards, procurement outcomes, investment approvals, regulatory determinations, licensing decisions, or any other matter that is subject to the discretion of a third party, governmental authority, investor, donor, lender, or procurement entity.

10. INDEPENDENT CONTRACTOR RELATIONSHIP

10.1 The Parties expressly acknowledge and agree that R-Pro Business Consult Services is engaged by the Client solely as an independent contractor and that nothing contained in this Agreement shall be construed, interpreted, or deemed to create any relationship other than that of an independent contractor and client.

10.2 Nothing in this Agreement shall be construed as creating or establishing:

- a. An employer-employee relationship;
- b. A partnership or partnership arrangement;
- c. A joint venture or joint enterprise;
- d. A principal-agent relationship;
- e. A fiduciary relationship;
- f. A franchise relationship;

g. A relationship of trust or representation beyond the specific obligations expressly provided in this Agreement; or

h. Any authority permitting either Party to bind, obligate, or incur liabilities on behalf of the other Party.

10.3 The Consultant shall retain full control, discretion, and responsibility over the manner, method, means, personnel, resources, and processes used to perform the Services, provided that the Services are delivered in accordance with the terms and objectives of this Agreement.

10.4 The Consultant shall determine the time, place, sequence, and methodology for carrying out the Services and shall have the right to utilize its employees, consultants, subcontractors, agents, or service providers as it deems appropriate for the performance of the Engagement.

10.5 Nothing contained in this Agreement shall confer upon the Consultant or any of its personnel any entitlement to benefits ordinarily associated with employment.

g. Any other statutory or contractual employee benefits available to the Client's employees.

10.6 The Consultant shall be solely responsible for its own business operations, personnel management, tax obligations, statutory remittances, insurance coverage, professional licences, permits, registrations, and compliance with all laws applicable to its business activities.

10.7 The Consultant shall have no authority to:

a. Make representations, warranties, or guarantees on behalf of the Client;

b. Enter into contracts or commitments in the name of the Client;

c. Incur expenses, liabilities, or obligations on behalf of the Client; or

d. Hold itself out as an employee, partner, legal representative, or agent of the Client,

unless expressly authorized in writing by the Client for a specific purpose.

10.8 The Client acknowledges that the Consultant may provide services to other clients, businesses, organizations, or government entities during the term of this Agreement, provided that such engagements do not create a conflict of interest or compromise the Consultant's obligations under this Agreement.

10.9 Each Party shall be solely responsible for its own acts, omissions, liabilities, obligations, debts, expenses, taxes, and regulatory compliance, and neither Party shall be liable for the obligations of the other except as expressly provided in this Agreement.

10.10 The provisions of this Clause shall survive the expiration, completion, cancellation, or termination of this Agreement to the extent necessary to establish the nature of the relationship between the Parties and allocate responsibility for liabilities arising during the Engagement.

10.11. **No Exclusivity:** Nothing in this Agreement shall restrict the Consultant from providing similar or related services to other clients, provided that the Consultant does not disclose the Client's Confidential Information or create a material conflict of interest in the performance of the Services.

11. CONFLICT OF INTEREST

The Client acknowledges that the Consultant may provide services to multiple clients, including clients operating in similar sectors.

R-Pro Business Consult Services shall not be deemed to have a conflict of interest solely because it provides services to another client, provided that:

- Confidential information is protected;
- No proprietary information is disclosed;
- No legal or professional duty is breached.

Where an actual conflict arises, the Consultant shall promptly disclose the conflict and implement reasonable measures to manage it.

12. NON-SOLICITATION

During the term of this Agreement and upon its termination, the Client shall not directly or indirectly:

- Employ;
- Engage;
- Solicit;
- Recruit; or
- Induce to leave employment

any employee, consultant, contractor, or representative of R-Pro Business Consult Services who was involved in the provision of Services under this Agreement.

Where the Client breaches this provision, the Client shall pay liquidated damages equal to six (6) months of the individual's gross remuneration or professional fees immediately preceding the breach.

12. CLIENT INDEMNITY

12.1 Client Indemnity

The Client shall indemnify, defend, and hold harmless R-Pro Business Consult Services, its directors, employees, agents, consultants, and affiliates from and against all claims, losses, liabilities, damages, penalties, costs, and reasonable legal expenses arising from:

- a. Any false, inaccurate, misleading, fraudulent, or incomplete information or documents provided by the Client;
- b. Any forged, altered, invalid, or unlawful document submitted by the Client;
- c. Any breach of this Agreement by the Client;

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- d. Any fraudulent, criminal, dishonest, or unlawful act committed by the Client or any person acting on the Client's behalf;
 - e. The Client's violation of any applicable law, regulation, or government requirement;
 - f. Any claim, investigation, fine, sanction, or regulatory action resulting from information, instructions, or documents supplied by the Client; and
 - g. Any third-party claim arising from the Client's acts, omissions, or conduct.

12.2 Costs and Cooperation

The indemnity shall include reasonable legal fees, professional fees, settlement costs, and other expenses incurred by R-Pro Business Consult Services in defending or resolving any covered claim. The Client shall provide all information, documentation, and assistance reasonably required in relation to such claim.

12.3 Survival

This indemnity shall survive the completion, expiry, or termination of this Agreement.

12.4 Exclusion

The Client shall not be required to indemnify R-Pro Business Consult Services to the extent that a claim arises directly from the gross negligence, fraud, or wilful misconduct of R-Pro Business Consult Services.

The Client acknowledges that R-Pro Business Consult Services relies on information and documentation provided by the Client and shall not be liable for any loss, delay, rejection, or adverse outcome resulting from inaccurate, incomplete, misleading, or fraudulent information supplied by the Client.

13. FORCE MAJEURE

13.1 Force Majeure Events

Neither Party shall be liable for any delay, interruption, or failure to perform its obligations under this Agreement where such delay or failure results from events beyond its reasonable control, including government actions, regulatory changes, natural disasters, pandemics, civil unrest, strikes, internet or telecommunications failures, cyber incidents, power outages, third-party service disruptions, funding or procurement policy changes, or any other event that materially affects the performance of the Services.

13.2 Suspension of Obligations

The affected Party's obligations shall be suspended for the duration of the Force Majeure Event without liability for breach of this Agreement.

13.3 Notice and Mitigation

The affected Party shall promptly notify the other Party of the Force Majeure Event and shall use reasonable efforts to minimize its impact and resume performance as soon as practicable.

13.4 No Liability for Outcomes Affected by Third Parties

The Client acknowledges that many of the Services provided by R-Pro Business Consult Services depend on decisions, processes, approvals, funding criteria, timelines, and actions of third

parties, including regulators, government agencies, financiers, investors, grant providers, procurement entities, licensors, and service providers. Accordingly, R-Pro Business Consult Services shall not be liable for any delay, rejection, cancellation, loss of opportunity, additional cost, or other adverse outcome resulting from a Force Majeure Event.

13.5 Termination

Where a Force Majeure Event continues for more than sixty (60) consecutive days and materially affects the Services, either Party may terminate this Agreement by written notice without further liability, except for obligations accrued before termination.

13.6 Fees and Refunds

The Client shall not be entitled to a refund of fees for Services already performed, costs incurred, or payments made to third parties before or during the Force Majeure Event. R-Pro Business Consult Services shall remain entitled to payment for all work completed and expenses reasonably incurred up to the date of termination or suspension.

For the avoidance of doubt, Force Majeure shall include any changes in funding requirements, grant conditions, procurement rules, regulatory directives, licensing criteria, market conditions, or governmental policies that materially affect the feasibility, timing, or outcome of the Services.

14. TERMINATION

14.1 Termination by Notice

Either Party may terminate this Agreement by giving fourteen (14) days' written notice to the other Party.

14.2 Immediate Termination by R-Pro Business Consult Services

R-Pro Business Consult Services may terminate this Agreement immediately by written notice where the Client:

- a. Provides false, misleading, fraudulent, or incomplete information or documentation;
- b. Commits a material breach of this Agreement and fails to remedy it within a reasonable period after notice;
- c. Engages in unlawful, fraudulent, or unethical conduct;
- d. Fails to pay any fees when due;
- e. Fails to provide information, documents, instructions, or cooperation necessary for the Services; or
- f. Exposes, or is likely to expose, R-Pro Business Consult Services to legal, regulatory, financial, or reputational risk.

14.3 Effect of Termination

Upon termination:

- a. R-Pro Business Consult Services shall cease providing Services;

b. All outstanding fees, expenses, and third-party costs incurred up to the termination date shall become immediately due and payable;

c. The Client shall remain liable for all obligations accrued before termination; and

d. Any ongoing application, funding request, licensing process, registration, procurement, or other third-party engagement may continue independently, and R-Pro Business Consult Services shall have no further obligation in relation thereto unless otherwise agreed in writing.

14.4 No Refunds

Termination shall not entitle the Client to a refund of any fees already earned, incurred, or paid to third parties, except where required by law or expressly provided in this Agreement.

14.5 Survival

Clauses relating to fees, confidentiality, intellectual property, indemnity, limitation of liability, dispute resolution, and any provisions intended to survive termination shall remain in full force and effect.

14.6 Preservation of Rights

Termination shall be without prejudice to any rights, remedies, liabilities, or obligations accrued prior to the date of termination.

15. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by the laws of the **Federal Republic of Nigeria**.

Both parties agree to resolve disputes amicably and in good faith. In the event of a dispute, the following escalation process shall apply:

• **Negotiation:** The parties shall first attempt to resolve the dispute through direct good-faith negotiation within fourteen (14) days of written notice by the aggrieved party.

• **Arbitration:** If unresolved after negotiation, the dispute shall be referred to and finally resolved by arbitration at the Lagos Multi-door Courthouse (LMDC), which Rules are deemed to be incorporated by reference into this clause:

- The seat of the arbitration shall be Lagos, Nigeria.
- The language of the arbitration shall be English.
- The number of arbitrators shall be one (1), unless the parties agree otherwise in writing. The arbitrator shall be appointed in accordance with the LMDC Rules.
- The arbitral award shall be **final and binding** on the Parties and may be enforced in any court of competent jurisdiction.
- **Litigation:** Only where mediation fails or is declined shall either party pursue formal legal remedies. The matter shall be governed by the laws of the Federal Republic of Nigeria and shall be subject to the exclusive jurisdiction of competent courts in Lagos State.

17. SEVERABILITY

If any provision of this Agreement is held to be invalid, illegal, or unenforceable in any respect under applicable law, such provision shall be deemed modified to the minimum extent necessary to make it valid, legal, and enforceable. If such modification is not possible, the relevant provision shall be deemed deleted. Any such modification or deletion shall not affect the validity, legality, and enforceability of the remaining provisions of this Agreement.

18. COUNTERPARTS AND ELECTRONIC EXECUTION.

This Agreement may be executed in any number of counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. A counterpart executed and transmitted electronically shall be deemed valid and binding for all purposes under Nigerian law.

19. ENTIRE AGREEMENT AND AMENDMENTS

This Agreement, together with its Schedules constitutes the entire agreement between the parties and supersedes all prior discussions, representations, and understandings, whether oral or written. No amendment shall be valid unless made in writing and signed by authorized representatives of both parties. In the event of a conflict between this Agreement and any Schedule, the terms of this Agreement shall prevail unless the Schedule expressly states otherwise.

20. CLIENT ACCEPTANCE

By signing this Agreement, the Client confirms that:

- They have read and understood this Agreement in its entirety
- They understand the risks associated with international relocation and visa processing
- They agree to the milestone-based payment structure
- They consent to the processing and sharing of their data for programme purposes in accordance with the NDPA 2023
- They understand that employment and visa approvals are not guaranteed
- They agree to comply with all programme requirements and timelines
- They accept the indemnity obligations set out in Section 11

This Agreement becomes legally binding upon execution by both parties.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their duly authorized representatives as of the date last written below.

The Common Seal of the within named: **R-PRO BUSINESS CONSULT LIMITED** was hereunto affixed:



In the presence of:

[Authorized Signatory]

[Authorized Signatory]

Signed by the Client:

Name: _____

Signature: _____

Date: _____

In the presence of:

Name: _____

Address: _____

Occupation: _____

Phone no.: _____

Signature: _____ Date: _____